FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Bronx

U.S. BANK TRUST NATIONAL ASSOCIATION, NOT IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS OWNER TRUSTEE FOR RCF 2 ACQUISITION TRUST C/O U.S. BANK TRUST NATIONAL ASSOCIATION

Plaintiff,

-against-

KITTREPLA DEVELOPMENT CORP, PEOPLE OF THE STATE OF NEW YORK, COMMISSIONER OF SOCIAL SERVICES OF THE CITY OF NEW YORK SOCIAL SERVICES DISTRICT, CRIMINAL COURT OF THE CITY OF NEW YORK, MAIN ST ACQUISITION CORP, NEW YORK CITY ENVIRONMENTAL CONTROL BOARD, NEW YORK CITY PARKING VIOLATIONS BUREAU, NEW YORK CITY TRANSIT ADJUDICATION BUREAU

Defendant.

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Index No. 817523/2023E

MORTGAGED PROPERTY:
4038 Monticello Avenue
Bronx, NY 10466

COUNTY: Bronx
SBL #: Block: 4987 Lot: 12
Sale Date: April 20,2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 824,474.22
2. Adjusted Judgment Amount (Upset Price): $ 928,576.68
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 585000
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ ~~573,750~~ 0
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 1,450.00

Referee Name: Scott H. Siller, Esq. Telephone: 516-644-6769
Address: 706 Equestrian Way, Westbury, NY 11590
Email: Scotthsesq@aol.com Signature/Date: 4/20/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Gross Polowy LLC
Address: 1775 Wehrle Drive, Suite 100, Williamsville, NY 14221
Telephone: (716) 204-1700
Email: info@grosspolowy.com
Signature/Date:

C. To Be Completed by Purchaser

Name: Howard Rock LLC
Address: PO Box 610026 Bronx NY 10466
Telephone: 917/577-0175
Email: Khold1150@aol
Signature/ Date:

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19